

co-executor having been the cashier with whom the testator in his lifetime chose to intrust his money, the executor ought not to suffer for having trusted him whom the testator himself in his life trusted."

4. **Trustee may delegate by testator's direction.** — But trustees cannot be answerable, if they merely follow the testator's directions. Thus a testator by his will recommended his executors to employ A. (who had been in the testator's own employment) as their clerk or agent. The executors gave A. a power of attorney to receive debts, and A. subsequently became insolvent. It was contended that the executors were answerable for the default of A., but Sir A. Hart said that if a testator pointed out an agent to be employed by the executor, and such employee *re- [*254] ceived a sum of money, and immediately made default, the executor would clear himself by showing that the testator designated the person, and that he could not by the exercise of reasonable diligence recover the money (a).

5. **Trustee acting as agent.** — And an executor cannot be answerable for having handed over money which he had no legal right to retain. Thus, a testator appointed A., B. and C. his executors, and empowered one of them, A., to sell certain freehold premises, and directed the proceeds to the sale to be applied and disposed of in the same manner as his personal estate. A. employed B., as his agent, to make the sale, who, having disposed of the property, paid the proceeds to A., by whom the money was misapplied. It was held that B. was not answerable for this, the money having come to his hands, not in the character of executor, but of agent (b).

6. **Delegation permitted where there is a moral necessity for it.** — And trustees and executors may justify their administration of the trust fund by the instrumentality of others, where there exists a moral necessity for it. "There are," said Lord Hardwicke, "two sorts of necessity: first *legal*

Hill's MSS., cited 1 P. W. 241, note (y), 6th ed.; *Chambers v. Minchin*, 7 Ves. 198.

(a) *Kilbee v. Sneyd*, 2 Moll. 100, 200; and see *Doyle v. Blake*, 2 Sch. & Lef. 239, 245.

(b) *Davis v. Spurling*, 1 R. & M. 64; S. C. Taml. 109; and see *Crisp v. Spranger*, Nels. 109; *Keane v. Robarts*, 4 Mad. 332, see 356, 359.